7

Statement of Confession

Confession has not been defined anywhere in law. However, confession is considered as an admission made at any time by a person charged with a crime, stating of suggesting the inference that he committed crime. Thus confession is a statement which either admits in terms the offence or at any rate substantially all the facts which constitute the offence.

Confession has different level of value, relevance and credibility based on when, where and before whom it is made. For an easy understanding, it can be divided in to three categories.

- Confession made before police officer.
- Confession made before judicial magistrate.
- Confession made before any other person (Extra judicial confession).

Confession made before police officer

- Confession made before a police officer is not admissible and hence cannot be used against the accused during trial – (Sec.25 IEA).
- However, that part of the confession statement which leads to discovery of a material fact is admissible and hence can be used against the accused – (Sec.27 IEA). A discover of fact includes:
  a) The object found
  b) The place from which it is produced
  c) The knowledge of the accused to it's existence.
- Hence, an investigating officer shall adhere to following guidelines while recording confession:
  - Confession should be voluntary disclosure from the accused, it should not be extracted by inducement, threat or promise.
  - Confession should be recorded in the language including the words / slang of the accused.
  - Confession should be recorded in the presence of two independent witnesses.
  - Confession statement should be signed by the IO and two independent witnesses.
  - When the confession leads to recovery of any object / weapon / property same should be done in the presence of independent witnesses and seizure mahazar should be signed by the IO and independent witnesses.

Confession made before judicial magistrate

- Recording of confession by judicial magistrate (judicial confession) can be during investigation as provided u/s.164 Cr.P.C or during the trial as provided u/s.281 Cr.P.C.
- The Investigating Officer shall make an application before the CMM/CJM for nominating a Magistrate, other than the jurisdictional Magistrate, to record the confession statement of an accused.
- Magistrate is obligated to warn the accused that he is not bound to give confession statement and it may be used against him if he chooses to give and record the same in writing that it was explained to accused.
- After recording the confession statement of an accused, the recording Magistrate shall arrange to take two photocopies of the same under his direct supervision and certify the same as true copies.
- The confession statement, in original, shall be sent in a sealed cover to the jurisdictional Magistrate or Court, as the case may be, through a special messenger or by registered post with acknowledgment due.

- One certified copy of the confession statement shall be immediately furnished to the Investigating Officer, free of cost, with a specific direction to him, to use it only for the purpose of investigation and not to make its contents public, until the investigation is completed and final report filed.
- The other certified photocopy of the confession statement shall be kept in a sealed cover in the safe custody of the recording Magistrate.
- When, an accused under police custody is produced before magistrate for recording confession u/s.164 Cr.P.C and if the accused expresses his unwillingness to give confession, magistrate can not give police custody of such accused and accused can only be sent to judicial custody.

Extra judicial confession

- Though, extra judicial confession is a weak peace of evidence, it can be used as corroborative evidence.
- The principles governing admissibility of an extra-judicial confession capable of forming the basis of conviction of an accused have been summed up by Hon'ble Supreme Court in Sahadevan Vs Stae of Tamil Nadu (2012) 6 SCC 403 as below:
  - The extra-judicial confession is a weak evidence by itself. It has to be examined by the court with greater care and caution.
  - It should be made voluntarily and should be truthful.
  - It should inspire confidence.
  - An extra-judicial confession attains greater credibility and evidentiary value if it is supported by a chain of cogent circumstances and is further corroborated by other prosecution evidence.
  - For an extra-judicial confession to be the basis of conviction, it should not suffer from any material discrepancies and inherent improbabilities.
  - Such statement essentially has to be proved like any other fact and in accordance with law.